

SYNTHETIC RECORD — NOT FILED IN ANY COURT — ALL PARTIES, EVENTS, AND IDENTIFIERS ARE FICTIONAL

Proposed Change Order—29 Additional Terminals

Document date: June 3, 2024 Filed: April 7, 2025 Civil Action No. SYN-NDWV-25-CV-0618
Attachment to District ECF No. 8 District ECF No. 8-1

Change Request CK-01

Submitted by Copper Kestrel Logistics, LLC to Asterglen Freight Software, Inc. under the April 15, 2024 BeaconRoute Pilot License.

Copper Kestrel requests evaluation and, upon final approval, addition of twenty-nine terminal environments to the existing twelve-terminal pilot. The requested environments are listed in this proposal as X-01 through X-29. If approved, the combined licensed population would be forty-one terminals.

This document is a proposal for review. It identifies desired scope, technical assumptions, timing, and estimated commercial treatment so the parties can assess an expansion. It does not direct Asterglen to activate production service before written acceptance. Any preliminary credential or test environment supplied during review remains subject to Asterglen's written testing conditions and the existing Pilot License.

Requested evaluation start: June 10, 2024. Requested production readiness review: after successful load testing and reconciliation of terminal mappings. Proposed effective date for commercial expansion: to be inserted upon signature.

Copper Kestrel asks Asterglen to confirm capacity, required controls, and final pricing. A signed counterpart from each party is required before this request changes Schedule A.

Requested Terminal Schedule, Part One

The first fifteen proposed environments are:

1. X-01 — standard freight-routing connector; proposed credential B01.
2. X-02 — regional routing connector; proposed credential B02.
3. X-03 — standard routing connector; proposed credential B03.
4. X-04 — relay routing connector; proposed credential B04.
5. X-05 — standard routing connector; proposed credential B05.
6. X-06 — regional routing connector; proposed credential B06.
7. X-07 — continuity routing connector; proposed credential B07.
8. X-08 — standard routing connector; proposed credential B08.
9. X-09 — relay routing connector; proposed credential B09.
10. X-10 — standard routing connector; proposed credential B10.
11. X-11 — regional routing connector; proposed credential B11.
12. X-12 — standard routing connector; proposed credential B12.
13. X-13 — continuity routing connector; proposed credential B13.
14. X-14 — standard routing connector; proposed credential B14.
15. X-15 — relay routing connector; proposed credential B15.

Each code is a planning designation rather than evidence of activation. Copper Kestrel will provide endpoint mappings and responsible operational contacts before a test. Asterglen may assign a different technical Identifier if needed for security or service administration. No environment in this part becomes a Licensed Terminal unless the change order is completed in the manner required by the Pilot License.

Requested Terminal Schedule, Part Two

The remaining fourteen proposed environments are:

16. X-16 — regional routing connector; proposed credential B16.
17. X-17 — standard routing connector; proposed credential B17.
18. X-18 — relay routing connector; proposed credential B18.
19. X-19 — standard routing connector; proposed credential B19.
20. X-20 — continuity routing connector; proposed credential B20.
21. X-21 — regional routing connector; proposed credential B21.
22. X-22 — standard routing connector; proposed credential B22.
23. X-23 — relay routing connector; proposed credential B23.
24. X-24 — standard routing connector; proposed credential B24.
25. X-25 — regional routing connector; proposed credential B25.
26. X-26 — continuity routing connector; proposed credential B26.
27. X-27 — standard routing connector; proposed credential B27.
28. X-28 — relay routing connector; proposed credential B28.
29. X-29 — standard routing connector; proposed credential B29.

Together, Parts One and Two contain exactly twenty-nine requested additions. They are separate from the twelve terminals already listed in Schedule A to the Pilot License. Copper Kestrel proposes a shared test sequence but expects status to be tracked individually because an error at one environment should not determine readiness at another. All identifiers, endpoint data, and connector descriptions remain subject to verification during technical review.

Proposed Implementation and Commercial Terms

Copper Kestrel proposes four stages. First, the parties would validate terminal mappings and create restricted credentials. Second, Copper Kestrel and its integrator would conduct isolated connector checks using nonoperational or controlled traffic. Third, Asterglen would supervise a measured load test under conditions it supplies in writing. Fourth, the parties would review results and decide whether to sign a production expansion.

No stage may be advanced merely because a prior stage generated satisfactory data. In particular, credential creation and load testing do not authorize ordinary freight routing at a Proposed Terminal. Copper Kestrel will maintain a status list showing whether each environment is mapped, configured, tested, suspended, or proposed for later production.

Estimated additional license fees: twenty-nine terminals at \$12,000 each, totaling \$348,000 for the contemplated license period, subject to negotiation and final approval. This estimate is not due under the current Pilot License and is not agreed liquidated damages. Implementation expense, taxes, capacity, and service levels would be resolved in the final writing.

Asterglen may propose capacity limits, monitoring requirements, or a smaller deployment group after technical review. Copper Kestrel may withdraw the request before signature. If the parties do not agree, temporary test access will be closed according to written instructions and the twelve-terminal pilot will remain the operative scope.

Approval Status and Signature Fields

Requested modifications if accepted: replace the twelve-entry Schedule A with a forty-one-entry schedule; add final pricing and service capacity; state a commercial effective date; and incorporate an approved transition plan. All other provisions of the April 15 Pilot License, including Section 9.2, would remain in effect unless the signed change expressly stated otherwise.

Open items as of June 3, 2024 include load thresholds, monitoring contacts, test duration, rollback criteria, production start date, final fees, and written confirmation that each endpoint corresponds to the described terminal. Copper Kestrel requests a written response before technical testing begins.

Copper Kestrel Logistics, LLC Submitted by authorized business representative Date: June 3, 2024 Status: signed as proposal by Copper Kestrel

Asterglen Freight Software, Inc. Authorized acceptance signature: _____
Date: _____ Status: not signed

This proposal contains no Asterglen acceptance. The blank field records that the change order remained pending on the document date. Any later permission for testing must be found in the communication granting that permission and read with its stated restrictions. Only a completed change order would approve the twenty-nine additional terminals for continuing production use.

End of proposed Change Request CK-01.